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ALLIED TIMBERS ZIMBABWE (PVT)LTD

Versus

RALPH WATUNGWA

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE & VNDLOVU JJ
HARARE 23 October 2025 & 5 June 2026

Civil Appeal

E.T. Moyo for appellant
R. Kadani with *T. Chipunza* for respondent

CHILIMBE J

BACKGROUND

[1] This is an appeal against the whole judgment of the magistrates court sitting at Harare which, on 30 June 2025, dismissed with costs, the special plea filed by appellant a quo. The grounds of appeal were framed thus; -

1. The learned magistrate of the court a quo erred and grossly misdirected herself in finding, without sufficient evidence, that there had been ongoing communication between the Appellant and Respondent over the years which served to interrupt the running of prescription.
2. The learned magistrate erred and misdirected herself in failing to interrogate what the alleged communication were, (sic) and in particular if the written correspondence of December 2024 amounted to, or constituted an acknowledgement of debt or liability by a debtor.
3. The court a quo grossly misdirected itself and erred by failing to consider that a debt, once extinguished by prescription, it (sic) cannot be revived, or if Appellant had agreed to pay the debt after it had been extinguished by prescription.

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4. Resultantly, the court erred in dismissing the special plea of prescription which was well-taken on the facts of the matter.

[2] The appellant prayed for the following relief; -

1. That the appeal be allowed with costs.
2. Resultantly, the decision of the court a quo be set aside and be substituted with a finding that the special plea of prescription is upheld and the Plaintiff`s claim be dismissed with costs.

PROCEEDINGS IN THE COURT A QUO

[3] The respondent (as plaintiff) issued summons against the appellant (as defendant) on 9 May 2025 in the court a quo. He prayed for an order of specific performance with damages as an alternative. He sought in that regard, delivery of a consignment of timber whose value was fixed at ZWL 1,096,191 (or US$12,694,96). The amount expressed in United States Dollars ("USD") also constituted the alternative damages claim.

[4] The claim arose from a sale transaction in which the respondent purchased, on 9 June 2021, some timber (for construction) from appellant for an amount of ZWL 1,096,191 being the currency in use in Zimbabwe during the time. The respondent alleged in his particulars of claim a quo, that the appellant failed, despite demand, to deliver the goods in question hence his claim.

[5] The appellant contested the suit and filed a special of prescription[1]. It alleged firstly, that since delivery was, per the terms of the contract, immediately due upon payment in 2021, the cause of action arose so soon thereafter. Secondly, the appellant claimed that resultantly, the proceedings to recover the debt, having been filed in 2025, fell foul of the three-year period fixed by s 15 (d) of the Prescription Act [Chapter 8:11] ("the Prescription Act").

[6] The respondent raised two issues in his replication. Firstly, he disputed that delivery fell due immediately after payment. He contended that whilst he indeed made an advance payment on 9 June 2021, the appellant undertook to deliver the timber once such became

[1] The defence raised in the special plea largely mirrored that on the merits.

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"available". As his second point, the respondent indicated that in any event, the appellant had interrupted the running of prescription by acknowledging, "on divers" occasions, its indebtedness to him. The appellant allegedly made such admission formally (through its Sales Manager, Sandra Haisa on 21 December 2024), and informally (via one of its directors).

[7] Each party filed an affidavit of evidence. Ms Haisa deposed to the appellant`s affidavit. The deponent attached email correspondence exchanged between the parties between December 2024 and May 2025. She also tendered, inter alia, the following explanation for non-delivery of the timber which her company had been paid for; -

> "Upon investigation of the matter I discovered that while payment had been made and funds credited to our account, no further correspondence was shared to sales personnel by the plaintiff for processing the invoice and to complete the transaction. I advised him that owing to several fiscal changes from 2021 to date, the funds would have to be subjected to same. The amount paid revalued would amount to a sum of ZWL 438,82 with respect to which he could only collect product worth that much or be requoted and get product at current prices."

[8] In his affidavit of evidence, the respondent outlined what he understood to be the terms of the contract between the parties. Essentially, he averred that he paid for timber which apparently was in short supply at the time. He was informed, so he alleged, that once a consignment was ready, he would be notified to arrange for delivery.

[9] No such notification came. The respondent further deposed that in December 2024 he engaged a Mr Tafadzwa Mahachi, a director of the appellant who was known to him. The respondent claimed that he was assured that the debt was acknowledged and timber would be supplied. The undertaking was, according to respondent, subsequently denied and dishonoured.

ARGUMENTS IN THE COURT A QUO

[10] The appellant premised its special plea on s 14 (3) (b) of the Prescription Act [Chapter 8:11] which provides that; -

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14.(3) (b) an agreement made by the debtor to pay a debt after the debt has been extinguished by prescription shall be enforceable; whether or not the debtor knew at the time that he made the payment or the agreement that the debt had been extinguished by prescription.

[11] The respondent disputed that the debt had prescribed. According to him, the email dated 21 December 2024 addressed to him by Ms Sandra Haisa constituted a valid acknowledgement of debt[2]. It remained so notwithstanding attempts by Ms Haisa to renegotiate the price of timber[3]. In that regard, the appellant could not, argued the respondent, resile from that undertaking. That communication satisfied the requirements of s 14 (3) (b) of the Prescription Act for purposes of interrupting prescription. Reliance was placed on this court`s decision in *Sabina Altaf Ahmed v Joina Development Company (Pvt) Ltd* HH 242-20 where a similar defence was upheld.

[12] The appellant, on the other hand, averred in the court a quo that per *Asharia v Patel & Ors* 1991 (2) ZLR 276 (S), in the absence of a specific delivery date for the timber, the law presumed that performance fell due immediately after conclusion of the contract. Performance was in that regard, due on or around 9 June 2021.Summons were only issued in 2025 after the matter had clearly prescribed.

[13] In fact, the appellant argued that the respondent`s persistent follow ups on delivery confirmed that delivery had in fact, become overdue. Those follow ups contradicted, according to the appellant, the respondent`s contention that delivery was not due until the demand in 2024. The appellant also disputed, in the court a quo, that Ms Haisa`s email of 21 December 2024 constituted an acknowledgement of debt.

[14] On the authority of *Mukudare & Anor v Whitehead* HH 15-24, the appellant took the position that Ms Haisa`s email, raising as it did outstanding matters on revaluation of the transaction, could not amount to a valid acknowledgement of debt. The appellant`s additional argument was that in order for it to interrupt prescription, an admission of liability

[2] As defined in *First Merchant Bank Zimbabwe Limited v Fortress Investments (Pvt) Ltd & Anor* 2000 (2) ZLR 221 (S).
[3] Cited *Mangunda v Vundla* HB 87-24, *Njanike v Kufakunesu* HH 117-11, *Nyoni v Nyoni* SC 79-22 and *Pocock v AFC* 1995 (2) ZLR 365 (S).

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needed to relate to a current, rather than prescribed debt.[4]Lastly, the appellant strenuously argued that in any event, a prescribed debt was not capable of revival, even though an acknowledgement[5].

DECISION OF THE COURT A QUO

[15] The court a quo dismissed the special plea. After summarising the arguments on facts and law from both sides, the court a quo held as follows; -

> "Conclusion: The court is of the position that indeed payment was made in 2021 but the 3-year continuous period was interrupted by the enquiries of follow ups made in 2024 that even referred to re-evaluation of the quantities."

[16] I make the following observations at this juncture. Firstly, a number of matters regarding the claim, relief and defence were raised before the court a quo in the special plea. Such contestations touched terms of the contract, their interpretation, allegations of breach, defences thereto, acknowledgement of obligation plus damages and quantum. There were also evidentiary issues intrinsic in the arguments.

[17] Secondly, I note that the court a quo did not make a finding on these rather robustly contested issues. Thirdly and concomitantly, the court a quo did not delve into the material aspects of the causa, relief and defence raised in the special plea. No conclusions were made either, regarding contractual terms, breach, damages nor quantum. The court a quo merely noted that a certain event had taken place which interrupted prescription.

[18] This observation is pertinent. The herein point *in limine* invites the court to decide whether the above ruling was, per s 40 (2) of the Magistrates Court Act [Chapter 7:10] ("the Magistrates Court Act"), final and definitive. Implicit in the argument tendered on behalf of the respondent before us was the contention that this court is not required to make a determination on the correctness of the court a quo`s disposal of the special plea of prescription.

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[4] Relied on *Ndhlovu v Posts and Telecommunications Corporation* 1988 (2) ZLR 334 (H).
[5] *Lipschitz v Deschamps Textiles GmbH* 1978 (4) SA 427 (C).

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[19] The court should, per that argument, simply recognise the ruling as an interlocutory order which left the proceedings intact. On the contrary, the appellant`s position is that the special plea related to a substantive issue whose dismissal robbed it of a statutory right to defend itself.

THE POINT *IN LIMINE*: APPEALABILITY OF THE DISMISAL OF THE SPECIAL PLEA OF PRESCRIPTION BY THE COURT A QUO PER S 40(2) (b) OF THE MAGISTRATE COURT ACT?

[20] Mr *Chipunza* (for the respondent) contended in *limine*, that the court a quo`s ruling did not constitute a final and definitive judgment. As such, it was not appealable given the limitations set out in 40 (2) of the Magistrates Court Act. The special plea moved by the appellant in the court a quo was but a special defence to the merits. Its dismissal by the court a quo did not resolve the dispute which remained extant and awaiting a decision on the merits.

[21] As authority, counsel cited *Chimponda & Anor v Muvami* 2007 (2) ZLR 236 (H) at 329G- 330 C, *Chahwanda v Dube & Anor* HB 6-07, *Latric Investments (Pvt) Ltd v Deridon Chartered Accountants* HH 184-25, and *Nhau v Zuze* 697-22 where this court held [at pages 2-3] that; -

> *"*This means that allowing an appeal on an interlocutory order by the court *a quo* which is not final and definitive is bad at law. The order of the court *a quo* did not affect in a final and definitive manner, the issues between the parties which would be settled at the end of the trial. This appeal offends against the provisions of S 40 (2) (b) of the Magistrates' Court Act.This subject has already been settled in various judgments of the Supreme Court and this Court. I take a leaf from the case of *NMB Bank Ltd* v *Tawanda Mushaya & Ors* SC 164/21 wherein the Honourable GARWE JA (as he then was) stated as follows…...*"*[6]

[22] Mr *Moyo* for the appellant, argued that the point *in limine* was improperly taken because the order granted a quo was not interlocutory. Counsel submitted that *Chimponda v Muvami*

[6] The learned judge proceed to cite in extenso, the remarks of GARWE JA (as he then was) in the decision cited.

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(supra), distinguished a procedural order lacking definitiveness from one that substantially and conclusively determined the rights of the parties. A ruling on a special plea of prescription differed from other rulings on purely interlocutory issues because the former was a matter of substantive law.

[23] Counsel argued that in *Coutts v Ford & Anor* 1997 (1) ZLR 444 (H), this court recognised that a special plea of prescription conferred substantive rather than just procedural rights on the defendant. *Coutts v Ford* was cited with approval by the Supreme Court in *Shah v Kingdom Merchant Bank Ltd* SC 4-17. Further, in *Nan Brooker v Mudhanda* SC 5-18, no issue was raised on the appealability of a special plea.

[24] Mr *Moyo* also drew our attention to *Netone Cellular (Pvt) Ltd & Anor v Econet Wireless (Pvt) Ltd & Anor* SC 36-17, where the Supreme Court discussed at length, the distinction between temporal and final rulings on interlocutory and substantive matters. It was held, per PATEL JA (as he then was) at page 18 that; -

> *"Jesse's* case (*supra*) was focused on s 43(1) of the High Court Act, *i.e.* the right of appeal rather than leave to appeal. Nevertheless, the determinant test expounded in that case is equally applicable to the interpretation of s 43(2)(d) of the Act. That test is whether the order or judgment in question is decisive or definitive of the rights of the parties and has the effect of disposing of the whole or portion of the relief claimed by one of them." [emphasis mine]

[25] Mr *Moyo* urged the court to distinguish the authorities cited by the respondent`s counsel. *Chimponda v Muvami* and other such decisions dealt, according to Mr *Moyo*, with interlocutory matters and dilatory pleas rather than the disposal of substantive issues on the merits. The appealability of the court a quo`s decision had to be tested against the standard set out in *Net One Cellular v Econet*.

[26] Counsel`s further view was that a court dismissing adjectival rulings simply struck off, as opposed to dismissing matters. In such instance, a litigant could return to court once it purged its breach. This was not so with the special plea of prescription. Once dismissed, it

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deprived the defendant of a summary remedy created by statute. If upheld, the defence put the matter to rest.

[27] Mr *Moyo* cited *Alshams Global BVI Ltd v Deposit Protection Corporation & 3 Ors* SC 52-22, where the Supreme Court also defined interlocutory orders stating that these fell into two classes; - final and definite. Similarly, in *Trust Merchant Bank Ltd v Mako Properties Construction (Pvt) Ltd* SC 73-02 MALABA JA (as he then was) observed that one way of establishing if a ruling was final and definitive was to inquire if the final word on the matters before the court had been spoken. [*See also paragraph [38] below*]

[28] Finally, Mr *Moyo* submitted, with much conviction, that in the magistrates court, failure by a defendant to immediately appeal an adverse ruling on the special plea of prescription disentitled such defendant from appealing the point at the conclusion of proceedings. His reading of *Trust Merchant Bank v Mako Properties Construction (Pvt) Ltd* (supra) was that once determined, the matter became res judicata.

[29] In response, Mr *Kadani* (for the respondent) took the approach that in determining whether an order was subject to the restrictions in s 40(2) (b) of the Magistrates Court Act, one had to establish if it fell under either s 18 or s 39 of that Act. A special plea was incidental to the main dispute. Had the court a quo upheld the appellant`s special plea, such ruling would have been final and definitive. But its dismissal meant that the dispute could proceed and be heard on the merits. The appellant had not been deprived of its right to contest the claim.

[30] Mr *Kadani* also dismissed as incorrect, Mr *Moyo*`s submission that the right to appeal a wrong finding on the special plea of prescription would be lost if the opportunity to take the ruling on appeal at this stage was denied. Mr *Kadani*, relatedreferred to the rationale behind s 40 of the Magistrates Court Act on limitations of appeals, and s 43 of the High Court Act [Chapter 7:06] on the need to seek leave.

[31] In closing, Mr *Kadani* distinguished *Trust Merchant Bank Ltd v Mako Properties Construction (Pvt) Ltd*, *Net One v Econet*, and *Al Shams Global v DPC & Ors* on the basis

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that they related to applications for leave to appeal interlocutory rulings from the High Court. But in *Nhau v Zuze* and *Latric Investments (Pvt) Ltd v Deridon Chartered Accountants*, the court dwelt directly on s 40 of the Magistrates Court Act.

THE LAW

[32] As a general proposition, whilst subject to limitations, the right to appeal is a sacrosanct principle of our law. Section 40 of the Magistrates Court Act and ss 43 and 44 of the High Court Act [Chapter 7:06] ("the High Court Act") bear testimony to that concept. MATHONSI JA confirmed the position and observed, in *Al Shams Global v DPC & Ors*, that the right to appeal could only be fettered by specific legislative prescription.

[33] Such limitations were described as follows by the Supreme Court in *Prosecutor General* v *Intratek Zimbabwe (Pvt) Ltd & Anor* S-59-19, at page 13; -

> "As for the requirement of leave to appeal to be obtained before the right to appeal can be exercised, this Court is vested with an essentially gatekeeping function, *viz.* to allow only cases that deserve to be heard on appeal to pass muster. What this entails is an evaluation of the grounds of appeal to be relied upon and their prospects of success at the intended appeal. See *Chikurunhe & Ors* v *Zimbabwe Financial Holdings* SC 10-08; *Chipangura* v *Environmental Management Authority* SC 35-12."

[34] Coupled with these limitations is the principle that superior courts should be circumspect in interfering, via the device of appeals and reviews, with unterminated proceedings of subordinate courts. In *Nhau v Zuze*, this court recognised that principle in determining whether the ruling from the court a quo was final and definitive.

[35] Likewise, these overarching principles on the right and restriction to appeal as well approach toward unterminated proceedings will form a backdrop to considerations in the disposal of the point *in limine* before us. I now turn to s 40 of the Magistrates Court Act which provides that; -

> **40 Appeals**
> (1) No appeal shall lie from the decision of a court if, before the hearing is commenced, the parties lodge with the court an agreement in writing that the decision of the court shall be final.
> (2) Subject to subsection (1), an appeal to the High Court shall lie against—

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(*a*) any judgment of the nature described in section eighteen or thirty-nine;
(*b*) any rule or order made in a suit or proceeding referred to in section eighteen or thirty-nine and **having the effect of a final and definitive judgment**, including any order as to costs;
(*c*) any decision overruling an exception when the parties concerned consent to such an appeal before proceeding further in an action or when it is appealed from in conjunction with the principal case or when it includes an order as to costs.

[36] Mr *Kadani* correctly submitted, in my view, that the starting point was (a) to ascertain whether a judgment was located under s 18 or 39 of the Magistrates Court Act, and (b) conduct an interpretational exercise to determine the meaning of "a final and definitive judgment". I may observe that s 39, dealing exclusively with applications for rescission or alterations of judgment is inapplicable.

[37] Clearly, we are therefore concerned with a ruling made pursuant to s 18 (a), (b) and possibly (c) as read with s 40 (2) (b) of the Act. For completeness, I set out s18 below; -

18 Judgments
The court may, as the result of the trial of an action grant—
(*a*) judgment for the plaintiff in respect of his claim in so far as he has proved the same;
(*b*) judgment for the defendant in respect of his defence in so far as he has proved the same;
(*c*) absolution from the instance, if it appears to the court that the evidence does not justify the court in giving judgment for either party;
(*d*) such judgment as to costs as may be just, including an order that one party pay the costs of the other party on a legal practitioner and client basis.

[38] The question therefore becomes; - was the order of the court a quo final and definitive? Between them, the authorities cited from both sides firstly, issue guidance on the test of what constitutes final and definitive. Secondly, they aid in the interpretation of s 40 (2) of the Magistrates Court Act. The conclusion being, as observed by MALABA DCJ (as he then was) in *Trust Merchant Bank Ltd v Mako Properties Construction (Pvt) Ltd* that the law is well-settled on the matter. I set out below the various approaches by the courts over the years; -

i. *Net One v Econet* where PATEL JA (as he then was) held thus at page 15; -

"The critical criterion of the finality or otherwise of a given order or judgment, in determining the need for leave to appeal, was also reaffirmed and applied by MALABA DCJ in *Blue Rangers Estates (Pvt) Ltd* v *Muduviri & Another* 2009 (1) ZLR 368 (S) at 376, 379;

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and more recently by Chidyausiku CJ in *Minister of Higher and Tertiary Education* v *BMA Fasteners (Pvt) Ltd & Another* SC 33-2017, at pp. 5-6 of the cyclostyled judgment."

ii. In *Blue Ranges v Muduviri*, the court held as follows from 376 G -377 D; -

"To determine the matter, **one has to look at the nature of the order and its effect on the issues or cause of action between the parties and not its form**. An order is final and definitive because it has the effect of a final determination on the issues between the parties in respect to which relief is sought from the court. An order for discovery or extension of time within which to appeal, for example, is final in form but interlocutory in nature. The reason is that it does not have the effect of determining the issues or cause of action between the parties.

In this case, it was common cause that the order made by the learned judge was a spoliation order. When the applicant made the application for the order to the High Court, it placed three issues of fact before it for determination. The first was that it was in peaceful and undisturbed possession of the property at the time the first respondent appeared on the scene. The second was that the first respondent deprived it of such possession unlawfully (without due legal process) and without its consent. In other words, the first respondent arrogated to himself the right to take property out of the possession of the applicant. The third was that it was entitled to be restored to the possession of the farm.

All these facts in issue had to be determined in favour of the applicant for the spoliation order to have been made in applicant's favour. The issue between the parties was therefore whether there was spoliation. By making the spoliation order the learned judge confirmed that, on the affidavit evidence placed before her, she found that the three elements of spoliation had been established. The spoliation order was the authority for the restoration of the applicant to the possession of the property. The finding of the fact in issue was a final and definitive determination of the fact in question. There would have been no other final determination of the issue of spoliation on the return day."

And at 379 D: - "Many orders which are final in form are in fact interlocutory whilst some which are interlocutory in form are in fact final and definitive orders. The test is whether the order made is of such a nature that it has the effect of finally determining **the issue or cause of action** between the parties such that it is not a subject of any subsequent confirmation or discharge." [Underlined for emphasis]

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iii. *Steytler N.O. v Fitzgerald* 1911 AD 295 at 304 LORD de VILLIERS CJ[7]

"Whether on the particular point in respect of which the order is made the final word has been spoken in the suit, or whether in the ordinary course of the same suit, the final word has still to be spoken." [underlined for emphasis]

iv. *Zweni v Minister of Law-and-Order* 1993 (1) SA 523 (A)[8]

a) the decision must be final in effect and not susceptible to alteration by that court;
b) it must be definitive of the rights of the parties by granting definite and distinct relief; and,
c) it must have the effect of disposing of **at least a substantial portion** of the relief claimed in the proceedings. [underlined and marked in bold for emphasis]

[39] This settled position of the law invites two further comments. Firstly, the facts and circumstances of a particular matter are key in determining the question of finality and definitiveness of an interim ruling (see *Pretoria Racing Club* v *van Pietersen* 1907 TS 687 at page 375 F -376 A). Secondly, that courts must be flexible in their approach, as held by INNES J (as he then was) at page 313 in *Steytler N.O. v Fitzgerald* 1911 AD 295 that; -

> "It is not desirable to attempt an exhaustive definition. A number of tests to ascertain whether a decree is definitive are given in the books. It is sufficient for the purposes of this case to say that when an order incidentally given during the progress of litigation has a direct effect upon the trial issue, when it disposes of a definite portion of the suit, then it causes prejudice which cannot be repaired at the final stage, and in essence it is final, though in form it may be interlocutory." [underlined for emphasis]

APPLICATION OF THE LAW TO THE FACTS

[40] In applying the above legal principles in order to determine whether the ruling by the court a quo was final and definitive, I will traverse the following issues; -

i. *The principles governing the right and restriction to appeal.*
ii. *Whether a special plea of prescription is immune from the limitations on the right to appeal set out in s 40 (2) of the Magistrates Court Act,*
iii. *The causa, relief and defence constituting the dispute in the court a quo,*

[7] Cited with approval in *Trust Merchant Bank Ltd v Mako Properties Construction (Pvt) Ltd (supra),*
[8] Referred to in *Al Shams Global v DPC & Ors*

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iv. *The findings made by the court a quo in determining the special plea of prescription.*

The principles governing the right and restriction to appeal.

[41] In *Nhau v Zuze* the court took the following matters into consideration in determining whether a ruling was final and definitive per s 40 (2) of the Magistrates Court Act [at pages 4-5]; -

> "In *casu, Ms Chigwaza* did not point to any exceptional circumstances which would result in a grave miscarriage of justice if this matter were to be finalized in the lower court. The court *a quo*, in its ruling found that the respondent had laid down a basis for his claim through the evidence adduced by three witnesses and the valid offer letter from the relevant Ministry which he tendered. The offer letter was considered as prima facie proof of right, title and interest to the land. **It was the court *a quo's* view that the respondent had, at that stage discharged the onus on him.**
>
> It is my finding that this appeal is premature and is simply calculated to frustrate the finalization of this matter, particularly on the grounds of appeal placed before us. To impugn the court *a quo*'s decision by saying that it should have found that the respondent had no *locus standi* to evict the appellant from a privately owned property using an offer letter and that the court *a quo* had no appreciation of the law regulating acquisition of private land by government, is to do precisely what the Honourable GARWE JA warned against. This is a piecemeal appeal. The court *a quo* should be allowed to conclude the trial, come up with its decision and only then can its determination be questioned regarding whether the respondent has a right to evict the appellant and whether the law regulating the acquisition of privately owned by government is properly understood. This would apply both ways, in my view. On the one hand would be the case of a party holding an offer letter from the relevant Ministry whilst on the other is an individual who claims land was donated to party youths by a staunch supporter of the party but then amends his plea to show that title to the land is held by a company and not the party supporter he claims donated the land." [underlined for emphasis]

[42] My reading of the above judgment is that this court, per my sister MUCHAWA J, took what I may describe as a two-pronged approach. First, the learned judge considered the principle or rationale behind s 40 (2) of the Magistrate Court Act. Secondly, she followed the guidance in *Blue Ranges v Mudiviri* and other authorities and examined the causa, matters disposed of as well as the issues which remained outstanding after such ruling.

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[43] In saying this, my opinion is that indeed, the jurisprudential principles behind the limitations on the right of appeal must constantly weight in the mind of the court in matters of this nature. But the crisp requirement under s 40 (2) (b) is for the court to establish if the judgment a quo was final and definitive. Such inquiry is essentially technical.

Whether a ruling on a special plea of prescription is immune from the limitations created by s 40 of the Magistrates Court Act,

[44] Mr *Moyo* relied on the point raised in *Coutts v Ford*[9] that a plea of prescription related to a substantive right and defence, rather than a mere procedural option. Its dismissal amounted to disposal to finality, of a defence conferred upon a defendant by statute. Thus, any such ruling was final, definitive and appealable.

[45] Embedded in *Mr Moyo*`s argument was the contention that a special plea of prescription must be exempted from the strictures of s 40 (2) of the Magistrates Court Act. This argument cannot be correct. Firstly, the statute must speak for itself as noted by MANTHONSI JA in *Al Shams Global v DPC & Ors.* Between ss 18, 39 and 40 (2), the Magistrates Court Act defines the appellate regime regulating various matters determined by the Magistrates Court. The special plea of prescription is not granted a special place.

[46] Secondly, a reading of the authorities discloses that interim rulings can be issue from both substantive and procedural sources. What matters is the nature of the interim ruling and its effect. Which brings in the third point. It is necessary to pay heed to the words "…. **having the effect of a final and definitive judgment** ..." used in s 40 (2) (b).

[47] The terms "Final and definitive" are descriptors used to evaluate the ruling`s impact on the controversy between the parties (causa, relief, and defence proffered) before and after such ruling. Fourthly, perhaps as a sanity check, if the special plea of prescription were it to be accorded the status Mr *Moyo* argued it enjoys, an absurdity might ensue.

[9] In *Coutts v Ford*, this court, per CHIDYAUSIKU J (as he then was) interpreted s 14 (on extinction of debts by prescription) as follows at page 443; -"Thus, the clear intention of the legislature as expressed in the above provision is to make prescription a matter of substantive law as opposed to procedural law."

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[48] The perfidious litigant (mercifully, not the herein appellant), can gleefully abuse such status to the prejudice of the administration of justice. For what would stop such devious litigant from filing, as a matter of course, special pleas of prescription knowing that even the most spurious of them will be guaranteed the right of appeal?

[49] Such mischief would defeat the principles and rationale on rights and limitations of appeals discussed earlier. Accordingly, before it can be appealed, a ruling on the special plea of prescription in the Magistrates Court must simply take its place at the back of the queue. There to be subjected to the test articulated in *Blue Ranges* and other authorities; - is it a definitive and final ruling?

[50] This conclusion also addresses Mr *Moyo*`s argument, as I understood him, on the non-appealability of a special plea at the end of trial. It was a view which perhaps reflected counsel`s inadvertent misreading of MALABA DCJ`s concluding remarks in *Trust Merchant Bank Ltd v Mako Properties Construction (Pvt) Ltd*? The learned Deputy Chief Justice as then was, stated at page 3 that; -

> "As the order made by the High Court on 8 September 2000 is an interlocutory order in the sense in which the expression is used in section 43(2)(b) of the Act, no appeal lay as of right against it without leave of the judge who made the order. Leave to appeal against the order was not sought from the learned judge by Trust Merchant Bank."

The causa, relief and defence under inquiry in the court a quo,

[51] Herein, the answer to that question lies in the matter with which the court a quo was seized; -namely, a contractual dispute. The respondent prayed for an order of specific performance or damages for breach of contract in the court a quo. The appellant contested that claim. In the affidavits of evidence filed by both parties a quo, each side delved into the merits. I set out the matters so traversed at the commencement of this judgment.

[52] That background becomes relevant in applying the test in *Blue Ranges v Mudiviri* and other authorities. What were the issues? What were the facts? What were the contestations? What were the findings? What was the effect of such findings on the special plea of

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prescription itself? And the underlying causa, prayer and defence? With this observation in mind, I turn to the last point; -

The findings of the court a quo in determining the special plea of prescription

[53] The court a quo made the most fleeting of comments in its finding on the matters raised before it in the special plea [*see paragraph 15 above*] It did not resolve the issue of breach of contract. It did not address the evidentiary contestations mounted by each side. It did not, on a careful reading of its judgement, opine on whether Ms Haisa`s email constituted an acknowledgement and its effect on the contractual rights of the parties. The court a quo merely ousted the special plea of prescription. On that last aspect, the ruling was final and definitive. But should the inquiry end there?

[54] "Yes", argued Mr *Moyo*. "No", submitted Messrs *Kadani* and *Chipunza*. In resolving the impasse, I turn, for the last time, to the test on finality and definitiveness as variously expressed in the authorities. (i) *What was the nature of the order and its effect on the issues or cause of action between the parties*? (ii) *Did the order dispose of the issue or cause of action between the parties*? (iii) *Was the final word spoken*? *And (iv) did it dispose of a substantial portion of the dispute?* The answers are largely in the negative.

[55] The order of the court a quo dispensed with the special plea but left the dispute otherwise intact. The contestations over terms of the contract, obligations, performance, breach, liability and quantum remain open. Quite clearly, the judgment of the court a quo was neither final nor definitive. It left the plate of controversy still full. It was therefore not appealable based on the provisions of s 40 (2) (b) of the Magistrates Court Act. The point *in limine* must, in that regard, succeed.

DISPOSITION

[56] In reaching the above conclusion I recognise that s 40 (2) (b) of the Magistrates Court Act does not primarily concern itself with the correctness or otherwise of a ruling. This seemed the core concern of the appellant. Namely that if the dismissal of the special plea of prescription by the court a quo was wrong, then the appellant would be improperly deprived of a statutory defence.

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[57] Section 40 (2) (b) of the Magistrates Court Act does more than just stipulate decisions that can be appealed against. It invites a peek into the guts of the dispute to determine the finality and definitiveness and therefore appealability of interim rulings. It is not only a matter of whether the dispute, as in this case, still remained alive after the ruling. This point is critical. Finality and definitiveness are defined by the extent to which the controversy has been affected by the ruling, rather than whether a dispute remains alive notwithstanding such ruling. Herein, I may hazard that had the court a quo delved into the matters placed before it in argument, the result could well have been different.

[58] In that respect, the appeal ought to be struck off with costs following the suit.

It is therefore ordered that; -

1) The point *in limine* be and is hereby upheld.
2) The appeal be and is hereby struck off.
3) The appellant to bear the costs of suit.

CHILIMBE J

VNDLOVU J_____I agree

Mushoriwa Moyo-appellants` legal practitioners
Atherstone & Cook-respondent`s legal practitioners

[CHILIMBE J____5/6/26]

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